

24STCV01048 24STCV01048

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-09-08

Motion: DEFENDANT'S MOTIONS TO COMPEL INITIAL RESPONSES TO SUPPLEMENTAL REQUESTS FOR PRODUCTION, SET ONE; AND SUPPLEMENTAL INTERROGATORIES, SET ONE; WITH A REQUEST FOR SANCTIONS

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Case Number: 24STCV01048 Hearing Date: September 8, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

PATRICIA

KLEIN,

Plaintiff,

vs.

LASSENS NATURAL FOODS & VITAMINS, LLC, a California

Limited Liability Company, and DOES 1-50,

Defendants.

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CASE

NO.: 24STCV01048

[TENTATIVE] ORDER RE: DEFENDANT'S
MOTIONS TO COMPEL INITIAL RESPONSES TO SUPPLEMENTAL REQUESTS FOR PRODUCTION,
SET ONE; AND SUPPLEMENTAL INTERROGATORIES, SET ONE; WITH A REQUEST FOR
SANCTIONS

Dept. 733

8:30 a.m.

September 8, 2026

I.

INTRODUCTION

This is a
slip-and-fall case.

On January 16,
2024, Plaintiff Patricia Klein ("Plaintiff") filed a complaint against
Defendant Lassens Natural Foods & Vitamins, LLC ("Defendant"), alleging
causes of action for (1) General Negligence and (2) Premises Liability.

On July 24, 2026, Defendant
filed the instant motions to compel initial responses to Supplemental Requests
for Production, set one ("RFPDs") and Supplemental Interrogatories, set one

("ROGs") (together, "Discovery Requests").

No opposition was
filed.

II.

LEGAL STANDARD

1. Requests for Production

A party must
respond to requests for production of documents within 30 days after service.
(Code Civ. Proc. § 2031.260 (a).) The propounding and responding parties may
agree to extend the time for response. (Id. § 2031.270(a).) If a party
to whom requests for production of documents are directed does not provide
timely responses, the requesting party may move for an order compelling
responses to the discovery. (Id. § 2031.300 (c).) The party also waives
the right to make any objections, including one based on privilege or
work-product protection. (Id. § 2031.300 (a).)

There is no time
limit for a motion to compel responses to requests for production of documents
other than the cut-off on hearing discovery motions 15 days before trial. (Id.
§§ 2024.020 (a), 2031.300.) No meet and confer efforts are required before
filing a motion to compel responses to the discovery. (Id. § 2031.300; Sinaiko
Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148
Cal.App.4th 390, 411.)

The party who
fails to serve a timely response to a demand for inspection waives any
objection to the demand unless the court finds that the party has subsequently
served a response that is in substantial compliance or party's failure was the result of
mistake, inadvertence, or excusable neglect. (Code Civ. Proc. § 2031.300
(a)(1)-(2).)

2. Interrogatories

A responding party has 30 days after service

of interrogatories to serve their responses on the propounding party. (Code Civ. Proc. § 2030.260(a).) However, if interrogatories are served by electronic service, a responding party has an additional two (2) court days to respond. (Id. § 1010.6(a)(3)(B).)¿

If the responding party fails to timely respond to the interrogatories, “The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 1818.010).” (Code Civ. Proc. § 2030.290(a).)¿

Furthermore, the party propounding the interrogatories may move for an order compelling response to the interrogatories. (Code Civ. Proc., §§ 2030.290(b), 2031.300(b).) And “[u]nlike a motion to compel further responses, a motion to compel responses is not subject to a 45-day time limit, and the propounding party does not have to demonstrate either good cause or that it satisfied a ‘meet and confer’ requirement.” (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 404.)¿¿

Failure to timely respond waives all objections, including privilege and work product, unless “[t]he party has subsequently served a response that is in substantial compliance” and “[t]he party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.” (Code Civ. Proc., § 2030.290 (a)(1)-(2).)

III.

DISCUSSION

Defendant moves to compel Plaintiff to provide verified responses without objections to Defendant’s Discovery Requests.

Defendant’s counsel that he served Plaintiff with the Discovery Requests on December 4, 2025. (Vander Veer Decl., ¶ 3, A-B.) Thus, the responses were due on or before January 5, 2026. (Id. ¶ 5.) On January 7 and 12, 2026, and again on July 12, 2026, Defendant’s counsel reached out regarding when Plaintiff’s counsel will provide the responses. (Id. ¶ 6, Ex. C.) Defendant’s

counsel provides that as of the date of filing the motion, Plaintiff has not provided responses. (Id. ¶ 10.)

Lastly, the Court notes that no opposition was filed.

Thus, the motions are granted.

Sanctions

When a request for monetary sanctions is concurrently filed with a motion to compel responses, “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code of Civ. Proc., § 2023.030(a).) Additionally, “If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanction unjust.” (Ibid.)

The Court finds that Defendant has not provided the Court with substantial justification or the existence of circumstances that make the imposition of sanctions unjust, given that no opposition was filed.

Defendant’s

counsel declares that her hourly rate is \$217.00 which the Court finds reasonable. (Vander Veer Decl., ¶ 11.) Counsel declares that for each of the motions on calendar, he spent four (4) hours and anticipates spending another two (2) hours drafting and preparing a reply. Given that no opposition was filed, the Court eliminates any time to drafting or prepare a reply. And given the simplicity of the issues involved, the Court will award a total of two (2) hours for both motions. This totals \$434.00.

IV.

CONCLUSION

Based on the foregoing,

Defendant's motions

to compel initial responses to Supplemental Requests for Production, set one and Supplemental Interrogatories, set one are GRANTED. Plaintiff is ordered to provide verified responses without objections to the above discovery within thirty (30) days of this order.

Defendant's accompanying

request for sanctions is GRANTED in the total amount of \$434.00 against Plaintiff only. Sanctions are payable within 30 days of this order.

Dated this 8th day of September 2026

Hon. Gary

D. Roberts

Judge

of the Superior Court